

law; and the sentences of the courts ordering the government to pay damages to the plaintiff, or to perform a contract which it had entered into were carried out without any hindrance.

The law in our country is nearly the same on this point. The Japanese government is often proceeded against before the court by individuals; at that time it is represented there by the minister of the department of state concerned. The author of this book once pleaded himself against the state, represented by the minister of railways, before the Tokyo District Court about the requisition of his own land, and won, last year, and the case is now pending in the Tokyo Appeal Court.

Thus in some countries the law gives remedies to individuals against the state in certain cases, and they are given in the courts according to the law; and we think if the law gives remedies to individuals in some cases, it can give them also in other cases.

Such is the case in almost every constitutional monarchy, and needless to say of republics and democratic states.

#### EMBARRASSMENT OF STATE ADMINISTRATION.

The second objection to giving a right of action to individuals against the state is that, if this were allowed, it would involve the state in perpetual embarrassment, from the administrative point of view.

This is a very practical reason, often given by